

**BEFORE THE STATE BOARD OF BEHAVIORAL HEALTH LICENSURE
STATE OF OKLAHOMA**

**STATE OF OKLAHOMA, ex rel.,
STATE BOARD OF BEHAVIORAL
HEALTH LICENSURE,**

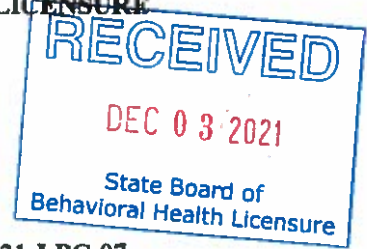
Petitioner,

vs.

**MARCOS CORTEST, LPC
LICENSE NO. 4044,**

Respondent.

Complaint No. 21-LPC-07



CONSENT ORDER

COMES NOW the State of Oklahoma, ex rel. the State Board of Behavioral Health Licensure ("the Board") by and through its attorney, Liz Stevens, Assistant Attorney General, and Marcos Cortest ("Respondent"), and hereby enter into this Consent Order, pursuant to 59 O.S. §1912(A) of the Licensed Professional Counselors Act, 86:10-29-3(b)(2)(C) of the Oklahoma Administrative Code, and 75 O.S. §309(E) of the Administrative Procedures Act. For the purposes of this Consent Order, the following facts are hereby stipulated to by the parties and adopted by the Board:

STIPULATION OF FACTS

1. Respondent is a Licensed Professional Counselor in the State of Oklahoma holding License Number 4044 and was licensed on or about August 11, 2008.
2. On or about February 4, 2021, the Board received a Request for Inquiry ("RFI") alleging Respondent engaged in a non-sexual dual relationship with a client ("Client").
3. After the termination of the Client-Counselor relationship, Respondent offered that Client his personal prescription medications via text message. The Client refused and no

prescription drugs were exchanged between Respondent and the Client.

4. In order to resolve all issues raised in the Request for Inquiry filed in this matter, the parties agree to the below Agreed Conclusions of Law and Agreed Order.

AGREED CONCLUSIONS OF LAW

1. The Board has jurisdiction over this matter and Respondent pursuant to 59 O.S. §1905(B)(4) of the Licensed Professional Counselors Act.

2. Pursuant to 59 O.S. §1912(A)(4) of the Licensed Professional Counselors Act, the Board has the authority to deny, revoke, suspend, or place on probation any license if that license holder has engaged in unprofessional conduct.

3. Pursuant to 59 O.S. §1913.1(B), the Board has the authority to impose an administrative penalty not to exceed ten thousand dollars (\$10,000) on any person who is determined to have violated any provision of the Licensed Professional Counselors Act or any rule promulgated, or order issued pursuant thereto.

4. Respondent agrees that he did not comply with the Licensed Professional Counselor Act nor the Oklahoma Administrative Code. Respondent violated the following:

86: 10-3-1. Responsibility

It shall be the responsibility of LPCs, in their commitment to the understanding of human behavior, to value objectivity and integrity, and in providing services, to strive to maintain the highest standards of their profession. LPCs shall accept responsibility for the consequences of their work and make every effort to ensure that their services are used appropriately. LPCs shall be alert to personal, social, organizational, financial, and political situations or pressures that might lead to the misuse of their influence. LPCs shall not participate in, condone, or be associated with dishonesty, fraud, deceit or misrepresentation. LPCs shall not exploit their relationships with

clients for personal advantage, profit, satisfaction, or interest.

86:10-3-3. Client welfare

(c) Dual relationships. LPCs shall not knowingly enter into a dual relationship(s) and shall take any necessary precautions to prevent a dual relationship from occurring. When the LPC reasonably suspects that he or she has inadvertently entered into a dual relationship the LPC shall record that fact in the records of the affected client(s) and take reasonable steps to eliminate the source or agent creating or causing the dual relationship. If the dual relationship cannot be prevented or eliminated and the LPC cannot readily refer the client to another counselor or other professional, the LPC shall complete one or more of the following measures as necessary to prevent the exploitation of the client and/or the impairment of the LPC's professional judgment:

- (1) Fully disclose the circumstances of the dual relationship to the client and secure the client's written consent to continue providing counseling;
- (2) Consult with the other professional(s) to understand the potential impairment to the LPC's professional judgment and the risk of harm to the client of continuing the dual relationship.

(f) Interaction with former clients. LPCs shall not knowingly enter into a close personal relationship, or engage in any business or financial dealings with a former client for five (5) years after the termination of the counseling relationship. LPCs shall not engage in any activity that is or may be sexual in nature, as defined by the Board, with a former client after the termination of the counseling relationship. Sexual conduct with former clients is prohibited. LPCs shall not exploit or obtain an advantage over a former client by the use of information or trust gained during the counseling relationship.

AGREED ORDER

The Board and Respondent agree to the following Order:

1. Respondent shall surrender his LPC license. The license surrender shall be effective thirty (30) days after the acceptance by this Board.
2. Respondent shall not reapply for a LPC license for a period of at least one (1) year.
3. Respondent will pay a one thousand (\$1,000) dollar administrative penalty to be paid within thirty (30) days from the issuance of this Order.
4. Respondent will participate in a graduate level Board approved ethics course. To be in compliance with this Order, Respondent will have to provide proof of successful completion of the course within one (1) year of the issuance of this Order.
5. Respondent understands and agrees that should any future instances be brought to the attention of the Board in which Respondent has violated the Licensed Professional Counselor Act or the Oklahoma Administrative Code, the Board reserves the right to prosecute such violations and to consider this Consent Order as a factor in the determination of any sanctions and penalties, if any, should the Board determine that any violation has occurred.
6. Failure to comply with any of the terms of this Order may result in further disciplinary action against Respondent, including, but not limited to, the suspension or revocation of Respondent's license.

PUBLIC RECORD

Respondent acknowledges that once adopted by the Board, this Consent Order and all associated documentation becomes a matter of public record, unless otherwise excluded by law.

ACCEPTANCE BY BOARD

This Consent Order will not be submitted for Board consideration until it has been agreed to and executed by Respondent. The Consent Order shall not become effective until it has been

approved by a majority of the Board and endorsed by a representative of the Board.

It is hereby agreed between the parties that this Consent Order shall be presented to the Board with a recommendation of approval from the Board at the Board Meeting scheduled for December 3, 2021. Respondent understands that the Board is free to accept or reject this Consent Order and, if rejected by the Board, a formal disciplinary hearing on the Complaint against Respondent may be held.

If the Consent Order is not accepted by the Board, it shall be regarded as null and void. Admissions by Respondent in the Consent Order will not be regarded as evidence against him at the subsequent disciplinary hearing. Respondent will be free to defend himself and no inferences will be made from his willingness to have entered into this agreement. It is agreed that neither the presentation of the Consent Order nor the Board's consideration of the Consent Order will be deemed to have unfairly or illegally prejudiced the Board or its individual members and therefore will not be grounds for precluding the Board or any individual Board member from further participation in proceedings related to the matters set forth in this Consent Order.

VOLUNTARY WAIVER OF RIGHTS

Respondent is fully aware of his rights to contest the allegations pending against him. Respondent acknowledges these rights include: representation by an attorney at his own expense; the right to a public hearing on any charges or allegations filed; the right to confront and cross-examine witnesses called to testify against him; the right to present evidence on his own behalf; the right to compulsory process to secure attendance of such witnesses; the right to testify on his own behalf; the right to receive written findings of fact and conclusions of law supporting the decision on the merits of the Complaint and the right to obtain judicial review of the Board's decision. Respondent in exchange for the Board's acceptance of this Consent Order voluntarily

waives all of these rights.

COMPLETE AGREEMENT

This Consent Order consists of seven (7) pages inclusive of the signature pages and Certification of Board Attorney and embodies the entire agreement between the Board and Respondent. It may not be altered and modified without the express consent of the parties.


AMY BARNETT, LPC CC Board Member

Dated this 1st day of December, 2021.

IT IS SO ORDERED.

STATE BOARD OF BEHAVIORAL HEALTH LICENSURE

By: 
BOARD MEMBER

Dated this 3 day of December, 2021.

I have read the entirety of this Consent Order. I understand that by its terms I waive certain rights accorded me under Oklahoma law. I agree to this Consent Order:


Marcos Cortez, Respondent

Dated this 11 day of November, 2021.


Paige Shotton, Attorney for Respondent

Dated this 11 day of November, 2021.

CERTIFICATION OF BOARD ATTORNEY

I believe this Consent Order to be in the best interests of the State Board of Behavioral Health Licensure and the State of Oklahoma for the violations as outlined in the foregoing Consent Order.



LIZ STEVENS, OBA NO. 34185

Assistant Attorney General

State of Oklahoma

313 N.E. 21st Street

Oklahoma City, Oklahoma 73105

(405) 522-4398; FAX (405) 522-4536

Dated this 12 day of December, 2021.

**ATTORNEY FOR THE STATE OF OKLAHOMA
STATE BOARD OF BEHAVIORAL HEALTH**